

AI-Copyright Litigation Procedure

R.A. Aswin Krishna · Forthcoming, *European Intellectual Property Review* (Thomson Reuters) · Incoming LLM in IP Law, Queen's University Belfast, September 2026

The problem

UK AI-copyright claims face a structural evidentiary asymmetry. A rights-holder who suspects their work was used to train a model cannot, at the outset, prove ingestion: the training data, the dataset composition, and the model's provenance all sit with the developer. Existing legal-AI tools summarise contracts and flag risk in general terms; they do not map a fact pattern onto the civil-procedure mechanics that decide whether such a claim can proceed.

The research

My forthcoming article in the *European Intellectual Property Review* proposes the **Post-Report Provenance Procedure (PRPP)** — a civil-procedure framework for managing that asymmetry within the existing UK Civil Procedure Rules, requiring no legislative change. It operates across three stages: the prima facie trigger (good arguable case under CPR r.6.37); Model C request-led Extended Disclosure under Practice Direction 57AD, including the IPEC carve-out at paragraph 1.4; and the adverse-inference analysis under the *Wisniewski* line as refined in *Magdeev v Tsvetkov* [2020] EWHC 887 (Comm). The framework is anchored in current authority: the March 2026 UK Government Report on Copyright and AI, the *Kneschke v LAION* decision of the OLG Hamburg (December 2025), and the EU AI Act Article 53 training-data-summary template adopted in July 2025.

The software

Alongside the research I have built its operational form: software that takes a UK AI-copyright fact pattern, maps it to the three PRPP stages, and produces a structured procedural assessment. Three design choices distinguish it from general-purpose legal-AI tools:

- **Citations are verified, not generated.** Every authority the system cites is drawn from a 50-entry database — UK and EU case law, statutes, civil procedure rules, directives, and policy instruments — each cross-checked against the official source (BAILII, legislation.gov.uk, EUR-Lex, CURIA). The model cannot invent or substitute citations; an output verifier rejects any citation that does not trace to the database, reducing citation-fabrication risk to a negligible level.
- **Scoring is deterministic.** The procedural scoring is computed in code from structured signals, not by the model. The model's role is limited to phrasing a result already determined and verified.
- **It runs entirely on the user's own machine.** No cloud, no third-party API, no client data leaving the device — the design choice that makes it deployable on confidential matters, not only on demonstrations.

Status

The framework is accepted for publication (forthcoming, *European Intellectual Property Review*, Thomson Reuters). The software is operational, with the procedural engine, a text-and-data-mining contract analyser, and a trademark clearance module each covered by an automated test suite. It is a working prototype the author maintains for his own professional use, offered here as a demonstration of the research in operational form.

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This summary describes original research and an independent prototype. The software is a research demonstration and does not constitute legal advice.